

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday 8/27/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
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2:00 PM LINE 1

23-CIV-00446	TIFFANY WILLIAMS VS. RUDY ORITZ, ET AL
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TIFFANY WILLIAMS RUDY ORITZ	IIAN N. ROSEN JANFAZA
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Ilan N. Rosen Janfaza's Motion to be Relieved as Counsel

TENTATIVE RULING:

The unopposed motion of Ilan N. Rosen Janfaza to be relieved as counsel of record for plaintiffs, Tiffany Williams and Yhvonna Travis, is **GRANTED**. Pursuant to CRC 3.1362(e), the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders

2:00 PM LINE 2

23-CIV-01255

BREANNE HERNANDEZ, ET AL VS. RECOLOGY, INC., ET AL

BREANNE HERNANDEZ
MIGUEL ALVAREZ

GARY A. DORDICK
P. CHRISTIAN SCHELEY

Plaintiffs' Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING:

For the reasons stated below, the petition is **CONTINUED**. The petitioner's supplemental filing does not adequately address the court's concerns about the proposed minor compromise. The remaining deficiencies are curable and do not presently suggest that the allocation or settlement amount is substantively improper.

The focused conditions should be: **(1)** a verified declaration expressly addressing Amias's current medical, orthopedic, neurological, psychological, developmental/educational status, supported if practicable by his most recent pediatric record; **(2)** a corrected attorney declaration making clear that the operative fee request is \$60,603.46/25%; **(3)** clarification of the \$485.63 medical-payment discrepancy and confirmation that the \$16,906.64 Kaiser/Machinify amount is the only outstanding reimbursement obligation; and **(4)** a revised proposed order/blocked-account order reflecting the \$162,059.14 net recovery.

If those matters are supplied, I see a reasonable basis on this record to approve the \$242,413.86 compromise, the 25% fee, the \$2,844.62 costs, the \$16,906.64 reimbursement, and the resulting \$162,059.14 blocked-account deposit.

If the tentative ruling is uncontested, it shall become the order of the Court.

2:00 PM LINE 3

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Plaintiff/Cross-Defendant Truebeck Construction, Inc.'s Motion for Leave to File a Second Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Plaintiff and Cross-Defendant Truebeck Construction, Inc.'s ("Truebeck") Motion for Leave to File a Second Amended Complaint is **GRANTED**.

BACKGROUND

On June 17, 2022, Truebeck, as general contractor, entered into a contract with Defendant SL 750G, LLC to perform construction work at 750 Gateway Boulevard in South San Francisco. Defendant SmartLabs was a tenant at the property, and Defendant BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP ("BMR"), owns the property.

Truebeck filed this action on March 28, 2024, and filed the operative First Amended Complaint ("FAC") on April 4, 2024. The action has since been consolidated with related matters and includes multiple cross-complaints.

Truebeck now seeks leave to file a Second Amended Complaint. The proposed amendments would: (1) add causes of action for common count/quantum meruit, promissory estoppel, and negligent misrepresentation/concealment against the BMR Defendants; (2) add a cause of action for intentional interference with contractual relations against newly named Director/Investor Defendants and certain existing parties; (3) add SmartLabs 2 as an alleged alter ego and as a party to existing claims; and (4) conform the pleading to prior Doe amendments and expand the alter ego allegations.

Truebeck states that the proposed amendments are based on information obtained in discovery in June 2026, including depositions taken on June 26 and June 30, 2026. The SmartLabs Defendants oppose the motion, arguing that Truebeck did not act diligently because the relevant information was available earlier in document productions and that certain proposed claims are legally futile.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on terms that are proper, to permit amendment of a pleading. Section 576 similarly provides that a judge may allow amendment of any pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to

permit the amendment and allow the opposing party to challenge the pleading by demurrer, motion for judgment on the pleadings, or other appropriate proceeding. (*Kittredge*, supra, 213 Cal.App.3d at p. 1048.)

DISCUSSION

The SmartLabs Defendants have not shown prejudice sufficient to overcome the liberal policy favoring amendment. No trial date is set. Truebeck represents that the proposed amendments are based on information developed through recent discovery, including June 2026 depositions. Although the SmartLabs Defendants contend that some of the information could have been discovered earlier, any asserted delay does not, on this record, establish prejudice that would warrant denial of leave to amend.

The SmartLabs Defendants also challenge the legal viability of the proposed intentional-interference claim. The Court declines to adjudicate the merits of the proposed pleading on this motion. Those arguments may be raised by demurrer, motion for judgment on the pleadings, motion to strike, or other appropriate procedure after the amended pleading is filed. (*Kittredge*, supra, 213 Cal.App.3d at p. 1048.)

Because leave to amend is liberally granted, no trial date has been set, and the opposing parties have not demonstrated cognizable prejudice from the amendment, the motion is **GRANTED**.

ORDER

Truebeck shall file and serve the Second Amended Complaint by September 3, 2026.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM LINE 4

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

**TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR**

A ROBERT ROSIN

Plaintiff/Cross-Defendant Truebeck Construction, Inc.'s Motion for Leave to Amend: Does

TENTATIVE RULING:

Parties to appear.

2:00 PM LINE 5

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Defendant/Cross-Complainant BMR-Gateway of Pacific II, LLC's Motion for Leave to Amend Cross-Complaint

TENTATIVE RULING:

For the reasons stated below, the Motion for Leave to File a First Amended Cross-Complaint ("FAXC") filed by Defendant and Cross-Complainant BMR-Gateway of Pacific II LLC ("BMR"), f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, is **GRANTED**.

BACKGROUND

These consolidated actions arise from disputes concerning SmartLabs' lease and tenant-improvement project at 750 Gateway Boulevard in South San Francisco, including SmartLabs' alleged failure to pay Truebeck Construction, Inc. for construction work and its alleged breach of the lease with BMR.

BMR filed its Cross-Complaint on August 9, 2024. On August 3, 2026, BMR moved for leave to file a FAXC based on information obtained through discovery. The proposed FAXC adds: (1) a tenth cause of action for intentional interference with contractual relations against ArrowMark Agency Services LLC and ArrowMark Colorado Holdings LLC; (2) an eleventh cause of action for intentional interference with contractual relations against Mass Innovation Labs, Inc.; and (3) alter ego allegations against Exycute LLC. The proposed pleading therefore adds ArrowMark Agency Services LLC, ArrowMark Colorado Holdings LLC, and Exycute LLC as new parties.

BMR contends that the proposed amendments arise from facts disclosed in substantial document productions made by the SmartLabs parties and ArrowMark during February, March, and May 2026. The SmartLabs Parties oppose, arguing that BMR delayed in seeking amendment and that the proposed interference and alter ego theories are legally futile.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on terms that are proper, to permit amendment of a pleading. Section 576 similarly provides that a judge may allow amendment of any pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to

permit the amendment and allow the opposing party to challenge the pleading by demurrer, motion for judgment on the pleadings, or other appropriate proceeding. (*Kittredge*, supra, 213 Cal.App.3d at p. 1048.)

DISCUSSION

The Court is not persuaded that BMR's motion should be denied for lack of diligence. The declarations establish that the relevant discovery was produced during February, March, and May 2026, with substantial productions continuing into the spring. BMR thereafter raised the anticipated motion for leave to amend at the June 15, 2026 case management conference, and filed the motion on August 3, 2026. On this record, the timing does not warrant denial of leave to amend.

Nor have the SmartLabs Parties demonstrated cognizable prejudice. No trial date is set, fact discovery remains ongoing, and depositions of existing Cross-Defendants remain to be taken. The proposed amendments arise from the same general controversy concerning SmartLabs' lease obligations, nonpayment, and abandonment of the project. The opposing parties therefore have adequate time to conduct discovery and respond to the amended claims.

The SmartLabs Parties also argue that the proposed interference claims and alter ego allegations are legally futile. The Court declines to adjudicate the merits of the proposed pleading on this motion. Those challenges may be raised by demurrer, motion for judgment on the pleadings, motion to strike, or other appropriate procedure after the amended pleading is filed. (*Kittredge*, supra, 213 Cal.App.3d at p. 1048.)

Because leave to amend is liberally granted, the timing of the motion does not warrant denial, and the opposing parties have not demonstrated prejudice, the motion is **GRANTED**.

ORDER

BMR's request that Exhibit A be deemed filed and served as the amended pleading as of the date of this ruling is **DENIED**. BMR shall file and serve the FAXC on all parties by September 3, 2026.

The Clerk shall issue a summons for service on all Cross-Defendants named in the FAXC, including the newly added parties ArrowMark Agency Services LLC, ArrowMark Colorado Holdings LLC, and Exycute LLC.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM LINE 6

25-CIV-02804

TOPPAN MERRILL LLC VS. PRESTO AUTOMATION INC.

TOPPAN MERRILL LLC
PRESTO AUTOMATION INC.

CAZ ASHJIAN

Plaintiff's Motion for Order to Substitute Serve the Complaint and Summons on the California Secretary of State

TENTATIVE RULING:

For the reasons stated below, Plaintiff Toppan Merrill LLC's Motion for an Order Permitting Substituted Service of the Summons and Complaint on the California Secretary of State is **GRANTED**.

Presto Automation Inc. is a foreign corporation. Corporations Code section 2111, subdivision (a), permits the Court to authorize service on the California Secretary of State when the corporation's designated agent for service of process cannot be found with due diligence at the designated address or the other circumstances specified in the statute are established by affidavit. (Corp. Code, § 2111, subd. (a).) Service made pursuant to section 2111 is deemed complete on the tenth day after delivery of the process to the Secretary of State. (Ibid.)

Here, Plaintiff has demonstrated the requisite due diligence. Plaintiff unsuccessfully attempted service at 985 Industrial Road, Suite 205, San Carlos, California, where the process server was informed that Defendant was no longer located. Plaintiff thereafter made four unsuccessful attempts to serve Defendant at 4 West 4th Street, Sixth Floor, San Mateo, California, on May 15, 19, 20, and 21, 2025. Plaintiff also located and attempted service at an address for a corporate officer and subsequently made three unsuccessful attempts at another address located for Defendant's agent for service of process. (Sposato Decl., ¶¶ 6–7, Exs. D–E.) These efforts establish due diligence within the meaning of Corporations Code section 2111.

Accordingly, the motion is **GRANTED**, and Plaintiff may serve Defendant through the California Secretary of State in the manner prescribed by Corporations Code section 2111, subdivision (a).

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM LINE 7

25-CIV-06878

FRANK KAUL VS. AFONSO INFANTE, ET AL

FRANK KAUL
AFONSO INFANTE

PRO SE
PRO SE

Defendant's Demurrer to Verified First Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Defendant Afonso Infante's ("Defendant" or "Infante") demurrer to Plaintiff Frank Kaul dba Swift Legal's ("Plaintiff") March 16, 2026 verified First Amended Complaint ("FAC") is **OVERRULED** in its entirety. (Code Civ. Proc., § 430.10, subds. (e), (f).)

Defendant's request to reclassify the action as a limited civil case is **DENIED**.

BACKGROUND

Plaintiff's original Complaint ("OC"), filed September 18, 2025, alleged that, on or about February 24, 2025, Defendant entered into an agreement with Plaintiff pursuant to which Plaintiff would provide private-investigative and service-of-process services to locate and serve third parties in connection with legal matters. Plaintiff alleged that Defendant promised to pay for those services despite having no intention of doing so. According to the OC, after Plaintiff provided the services, Defendant breached the agreement on or about June 15, 2025, by reversing, disputing, or otherwise refusing payment. Defendant demurred to the OC. On March 5, 2026, the Court sustained the demurrer in part and overruled it in part, with leave to amend.

On March 16, 2026, Plaintiff filed the verified FAC, which asserts three causes of action against Infante: (1) common counts—work, labor, and services; (2) breach of contract; and (3) promissory fraud. Defendant demurs to all three causes of action on the grounds that they fail to state facts sufficient to constitute a cause of action and are uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A complaint must allege the essential elements of a cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) A demurrer must dispose of an entire cause of action to be sustained. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, the Court accepts as true properly pleaded factual allegations and matters properly subject to judicial notice, but not contentions, deductions, or conclusions of fact or law. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The complaint must be reasonably interpreted and read as a whole, with its parts considered in context. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The Court construes the pleading liberally (Code Civ. Proc., § 452) and accepts as true facts that may reasonably be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

PLAINTIFF DID NOT PREMATURELY FILE THE FAC.

Defendant argues that the FAC is procedurally defective because Plaintiff filed it before entry and service of a formal order on the demurrer to the OC. The Court disagrees. The Court's March 5, 2026 minute order authorized Plaintiff to file an amended pleading "no later than ten (10) days after service of written notice of entry of the formal order." That language established an outside deadline; it did not prohibit Plaintiff from filing the FAC before service of notice of entry. The FAC therefore was not prematurely or improperly filed.

THE INCREASE IN THE AMOUNT OF CLAIMED DAMAGES DOES NOT RENDER THE FAC SUBJECT TO DEMURRER.

Defendant argues that the FAC constitutes a sham pleading because the OC alleged damages of "\$851.90 at a minimum" on the common-count claim and "at least \$2,500.00" on the fraud claim, whereas the FAC alleges damages of \$3,351.90. The argument is unpersuasive.

The sham-pleading doctrine permits a court to consider allegations in a superseded pleading where an amended complaint omits or contradicts material allegations in an apparent effort to avoid a defect in the earlier pleading. (*Berman v. Bromberg* (1997) 56 Cal.App.4th 936, 946–947.) The doctrine, however, is not mechanically applied to every change between successive pleadings. (*Id.* at pp. 946–947, 949–950.)

Here, the FAC does not eliminate or contradict an allegation that was fatal to the OC. The OC alleged \$851.90 "**at a minimum**" on the common-count claim and fraud damages of "**at least \$2,500.00.**" The FAC's allegation that Plaintiff's damages total \$3,351.90 is not necessarily inconsistent with those allegations. More importantly, the amendment does not alter the underlying allegations that Defendant requested Plaintiff's services, promised to pay for them, Plaintiff performed, and Defendant thereafter refused payment. Defendant's disagreement with the amount claimed presents a factual and evidentiary issue rather than a pleading defect.

Nor does the increase in claimed damages render the FAC uncertain within the meaning of Code of Civil Procedure section 430.10, subdivision (f). A demurrer for uncertainty is strictly construed because ambiguities ordinarily can be clarified through discovery. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Defendant can reasonably determine what allegations he must admit or deny, including whether he retained Plaintiff, promised payment, received the alleged services, refused payment, lacked an intent to perform when the promise was made, and caused Plaintiff the damages alleged. Defendant may seek through discovery further information concerning the calculation and itemization of Plaintiff's claimed damages.

THE FAC SUFFICIENTLY PLEADS EACH CAUSE OF ACTION.

The essential allegations of a common count are “(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.” (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460.) The FAC alleges that Defendant requested Plaintiff’s services, Plaintiff performed those services, their reasonable value was \$3,351.90, Plaintiff demanded payment, and Defendant failed to pay. (FAC, ¶¶ 39–42.) Those allegations are sufficient at the pleading stage. Defendant cites no authority requiring Plaintiff to attach invoices or plead particular hours and rates to state a common count.

The elements of a cause of action for breach of contract are (1) the existence of a contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damages. (*Lortz v. Connell* (1969) 273 Cal.App.2d 286, 290.) The FAC alleges that Defendant retained Plaintiff to provide litigation-support and private-investigative services and promised payment; Plaintiff performed; Defendant refused to pay; and Plaintiff suffered resulting damages of \$3,351.90. (FAC, ¶¶ 23–27, 43–47.) To the extent Defendant contends that the FAC fails to identify whether the agreement was written, oral, or implied, Defendant did not demur under Code of Civil Procedure section 430.10, subdivision (g).

As to promissory fraud, the Court previously overruled Defendant’s demurrer to materially similar allegations in the OC. The FAC alleges that Defendant promised to pay Plaintiff for services while having no intention of performing that promise, intended to induce Plaintiff to rely on the promise, Plaintiff reasonably relied by performing the requested services, and Plaintiff suffered resulting damages. (FAC, ¶¶ 23–27, 48–55; see *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638–639.) The FAC therefore sufficiently states a cause of action for promissory fraud.

RECLASSIFICATION

Defendant previously requested reclassification, and the Court denied that request on March 5, 2026. To the extent the present request constitutes a renewed application for the same relief, Defendant has not satisfied the requirements of Code of Civil Procedure section 1008, subdivision (b).

Independently, Defendant has not established that reclassification is warranted under Code of Civil Procedure section 403.040. An action may be reclassified from unlimited to limited based on the amount in controversy only where it appears to a legal certainty that a judgment exceeding the jurisdictional ceiling is unobtainable. (*Ytuarte v. Superior Court* (2005) 129 Cal.App.4th 266, 277–279.) The present ceiling for a limited civil case is \$35,000. (Code Civ. Proc., § 85, subd. (a).) Although the FAC alleges \$3,351.90 in unpaid compensation, it also asserts promissory fraud and seeks additional relief, including punitive damages. On the present record, Defendant has not established to a legal certainty that Plaintiff cannot obtain relief exceeding \$35,000. The request for reclassification is therefore **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court’s ruling for the Court’s signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

**UD LAW AND MOTION CALENDAR
THURSDAY, AUGUST 27, 2026**

2:00 PM LINE 8

26-UDL-00208

BRIDGE PROPERTY MANAGEMENT COMPANY VS. ARMANDO VEGA PACHECO, ET AL

BRIDGE PROPERTY MANAGEMENT COMPANY
ARMANDO VEGA PACHECO

MERCEDES A. GAVIN
PRO SE

Plaintiff's Motion for Terminating Sanctions Against Defendants Armando Vega Pacheco, Alexander Chaparro Rodriguez and Yenci Leguizamon

TENTATIVE RULING:

For the reasons stated below, Plaintiff Bridge Property Management Co.'s Motion for Terminating Sanctions against Defendants Armando Vega Pacheco, Alexander Chaparro Rodriguez, and Yenci Leguizamon is **DENIED WITHOUT PREJUDICE**.

On June 16, 2026, the Court found that Defendants had failed to respond to interrogatories, inspection demands, and requests for admission served by Plaintiff. The Court deemed the matters specified in the requests for admission admitted, ordered each Defendant to serve responses to the interrogatories and inspection demands within five days after service of notice of the order, and ordered Defendants to pay monetary sanctions of \$585 within 30 days. Notice of the order was served by mail on June 16, 2026. Defendants therefore were required to serve the discovery responses by June 22, 2026, and pay the monetary sanctions by July 16, 2026.

Plaintiff's evidence establishes that, as of June 29, 2026, Defendants had not served the ordered discovery responses and that, as of August 12, 2026, they had not paid the monetary sanctions. (Gavin Decl., ¶ 4.) Plaintiff seeks an order striking Defendants' Answer and entering their defaults pursuant to Code of Civil Procedure section 2023.030.

A trial court has broad discretion in selecting an appropriate discovery sanction. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) That discretion, however, must be exercised in light of the principle that discovery sanctions are intended to remedy the harm caused by discovery misuse rather than to punish a litigant or provide the opposing party with a windfall. (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 75; *Victor Valley Union High School Dist. v. Superior Court* (2023) 91 Cal.App.5th 1121, 1158.) The discovery statutes generally contemplate an incremental approach to sanctions, although prior unsuccessful lesser sanctions are not an absolute prerequisite to terminating sanctions in an appropriate case. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 787, 793.)

On the present record, the drastic remedy of striking Defendants' Answer and entering default is not warranted. Plaintiff sought discovery concerning the factual bases, witnesses, and documents supporting

Defendants' denial of Plaintiff's allegations. Although that discovery is important to Plaintiff's ability to prepare for trial, Plaintiff has not shown that Defendants' noncompliance has deprived Plaintiff of evidence necessary to establish its own prima facie case. Striking the Answer and entering default at this stage would therefore impose a sanction disproportionate to the prejudice presently demonstrated.

Moreover, the supporting declaration establishes that the discovery responses remained outstanding as of June 29, 2026, but does not expressly establish that they remained outstanding as of August 12, 2026, when the present motion was filed. The evidence does establish that the previously ordered \$585 monetary sanction remained unpaid as of August 12. Nonpayment of a monetary discovery sanction, standing alone, does not justify a terminating sanction. (*Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615.)

The motion for terminating sanctions is therefore **DENIED WITHOUT PREJUDICE**.

ORDER TO SHOW CAUSE

Defendants Armando Vega Pacheco, Alexander Chaparro Rodriguez, and Yenci Leguizamon are ordered to appear on August 27, 2026, at 2:00 p.m., in Department 2, 1050 Mission Road, South San Francisco, California, and show cause why issue, evidence, terminating, and/or additional monetary sanctions should not be imposed based upon their failure to comply with the Court's June 16, 2026 order compelling responses to Plaintiff's interrogatories and inspection demands.

Each Defendant shall serve all outstanding responses required by the June 16, 2026 order no later than September 4, 2027 at 4:00 p.m. Any Defendant contending that he or she has already complied shall file and serve, no later than September 4, 2027, a declaration identifying the date and manner of compliance and attaching a copy of the responses served.

Defendants are advised that continued failure to comply with the Court's June 16, 2026 discovery order may result in issue or evidence sanctions, the striking of their April 6, 2026 Answer, and entry of default.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM LINE 9

26-UDU-00738

GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY VS. DENISE WEEKS

GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY
DENISE WEEKS

THOMAS S. MCCONNELL
PRO SE

Plaintiff's Motion to Compel Further Discovery Responses

TENTATIVE RULING:

For the reasons stated below, Plaintiff Grand Prix Fixed Lessee LLC's unopposed Motion to Compel Discovery Responses is **GRANTED**.

Where a party to whom interrogatories or requests for production are directed fails to serve timely responses, that party waives any objection to the discovery, including objections based on privilege or work product protection, and the propounding party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290, subds. (a), (b), 2031.300, subds. (a), (b).)

Here, Plaintiff served Defendant Denise Weeks with four sets of written discovery on July 24, 2026: Requests for Production of Documents, Set One; Form Interrogatories, Set One; Special Interrogatories, Set One; and Requests for Admission, Set One. (Swearingen Decl., ¶ 2 & Ex. A.) Defendant's responses were due by August 3, 2026. Plaintiff received responses only to the Requests for Admission. (*Id.*, ¶ 3.) Plaintiff sent Defendant a meet-and-confer letter on August 7, 2026, but received no response to the letter and no responses to the outstanding discovery. (*Id.*, ¶¶ 4–5.)

Accordingly, the Motion is **GRANTED**.

Defendant is ordered to serve verified responses, without objection, to Plaintiff's Requests for Production of Documents, Set One; Form Interrogatories, Set One; and Special Interrogatories, Set One, within five days after service of notice of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

Posted: 3:00 P.M.

